JUSTICE ALITO announced the judgment of the Court and delivered the opinion of the Court with respect to all but Part III–A, and an opinion with respect to Part III–A, in

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gia, *Raúl R. Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Kris Kobach* of Kansas, *Liz Murrill* of Louisiana, *Lynn Fitch* of Mississippi, *Catherine Hanaway* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew Wrigley* of North Dakota, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, and *John B. McCuskey* of West Virginia; for the Federation for American Immigration Reform by *Christopher J. Hajec* and *Matt A. Crapo*; and for Sen. Ted Cruz by *James R. Conde*.

Briefs of *amici curiae* urging affirmance in both cases were filed for the Commonwealth of Massachusetts et al. by *Andrea Joy Campbell*, Attorney General of Massachusetts, *Tasha J. Bahal*, Deputy State Solicitor, *Isabelle Longfellow*, Assistant Attorney General, by *Rob Bonta*, Attorney General of California, *Michael L. Newman*, Senior Assistant Attorney General, *Vilma Palma-Solana*, Supervising Deputy Attorney General, and *Annabelle Wilmott* and *Jesse Basbaum*, Deputy Attorneys General, by *Kwame Raoul*, Attorney General of Illinois, *Jane Elinor Notz*, Solicitor General, and *Alex Hemmer*, Deputy Solicitor General, and by *Letitia James*, Attorney General of New York, *Barbara D. Underwood*, Solicitor General, *Judith N. Vale*, Deputy Solicitor General, *Cleland B. Welton II*, Assistant Solicitor General, *Zoe Levine*, and by the Attorneys General for their respective jurisdictions as follows: *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Brian L. Schwalb* of the District of Columbia, *Anne E. Lopez* of Hawaii, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Jennifer Davenport* of New Jersey, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, *Jay Jones* of Virginia, and *Nicholas W. Brown* of Washington; for Administrative Law Professor Adam B. Cox et al. by *Joshua M. Wesneski*; for the American Federation of Labor & Congress of Industrial Organizations (AFL–CIO) et al. by *Matthew Ginsburg* and *Andrew Lyubarsky*; for the American Immigration Lawyers Association et al. by *Alan Schoenfeld*; for Economists by *Vincent Levy*; for Former Ohio State Attorneys General by *Richard W. Mark*; for Former Senior Government Officials by *Jed W. Glickstein*, *Bruce Swartz*, and *Mary J. Hahn*; for the Haitian American Lawyers Association of Illinois et al. by *Rodney L. Pepe-Souvenir*, *Sandra Dieudonne*, *Stephanie Delia*, and *Judie Lyn Smith*; for the Haitian Lawyers Association by *Steve Art*, *Emmanuella A. Telfort*, *Michaèl's Déborah*

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which THE CHIEF JUSTICE, JUSTICE THOMAS, and JUSTICE KAVANAUGH join.

In these cases, we consider whether respondents, who challenge the termination of Temporary Protected Status (TPS) for aliens from Syria and Haiti, are entitled to orders postponing the terminations during litigation. We hold that they are not.

The TPS statute plainly bars consideration of respondents' non-constitutional claims. It allows "no judicial review of any determination . . . with respect to the . . . termination" of a TPS designation. 8 U. S. C. § 1254a(b)(5)(A). The term "determination" can be used to describe either an individual decision or the whole process leading to a final decision,

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Saint-Vil, and *Edna Pierre*; for the Howard University School of Law Civil Rights Clinic et al. by *Andrew H. Schapiro*, *Charles B. Straut II*, *Kristen Clarke*, and *Dariely Rodriguez*; for Local Governments et al. by *Jenny S. Ma*; for Members of Congress by *Stephen J. van Stempvoort* and *Robert S. Chang*; for the National Immigration Law Center et al. by *Cassandra Charles* and *Lynn Damiano Pearson*; for Project Rousseau by *Andrew Heinrich*; and for Sinai Residencies et al. by *Sarah S. Wilson* and *David Kim*.

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Janai S. Nelson, *Samuel Spital*, *Brittany Carter*, *Deuel Ross*, and *Jennifer A. Holmes* filed a brief of *amici curiae* for the NAACP Legal Defense and Educational Fund, Inc., et al. in No. 25–1084 urging affirmance in both cases.

Jo-Ann Tamila Sagar filed a brief of *amicus curiae* for Haitian Women for Haitian Refugees in No. 25–1084 urging affirmance.

Briefs of *amici curiae* were filed in both cases for America's Future et al. by *William J. Olson*, *Jeremiah L. Morgan*, *Patrick M. McSweeney*, and *Michael Boos*; for Faith in Action et al. by *Robert E. Shapiro* and *Corwin J. Carr*; for Immigration Law Scholars by *Jaya Ramji-Nogales* and *Andrew I. Schoenholtz*; for the National TPS Alliance et al. by *Baher Azmy* and *Shayana Kadidal*; and for the Syrian Justice and Accountability Centre et al. by *Chris Gair*.

Briefs of *amici curiae* were filed in No. 25–1084 for Médecins Sans Frontières USA, Inc., by *Jeffrey E. Sandberg*, *Abby C. Wright*, and *Matthew C. Quallen*; and for Springfield Neighbors United by *Kathleen Kersh* and *Renee Murphy*.

and under either understanding of the term, § 1254a(b)(5)(A) squarely bars all of respondents' non-constitutional claims.

The sole constitutional claim before us will likely fail. Citing statements made by President Trump and former Secretary of Homeland Security Kristi Noem, one set of respondents advances an equal protection claim that Haiti's TPS designation was terminated because of the racial makeup of that country's population. But, ironically, one of respondents' other arguments undermines the equal protection claim by offering a strong, race-neutral explanation for Haiti's termination: namely, that the current administration, which has terminated every TPS designation that has come up for renewal, simply opposes the TPS program, at least as it has been implemented in the past.

For these reasons, the District Courts erred in granting interim relief.

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I

A

Congress created TPS in 1990 to provide short-term humanitarian relief for aliens who cannot safely return to their home countries due to events such as armed conflict or natural disaster. Before then, the Executive Branch sometimes provided similar relief as a matter of discretion without any express statutory authorization. Then, as now, the Immigration and Nationality Act (INA) permitted the Executive to defer the removal of an alien who agrees to leave this country voluntarily. See 8 U. S. C. § 1229c(a)(1); § 1252(b) (1958 ed.). Before Congress created TPS, aliens had 30 days to depart voluntarily, but the Government claimed discretionary authority to extend that deadline indefinitely.[1] Beginning in 1960, the Government used this mechanism

[1] See H. R. Rep. No. 98–1142, p. 4 (1984); L. Oswald, Note, Extended Voluntary Departure: Limiting the Attorney General's Discretion in Immigration Matters, 85 Mich. L. Rev. 152, 155–156 (1986).

to provide humanitarian relief similar to that now furnished by TPS. Under a program that came to be known as "Extended Voluntary Departure" (EVD), the Government authorized deferred departure for nationals from countries where living conditions had become unsafe. EVD allowed aliens from those countries to remain in the United States until the Government concluded that conditions had improved. The Government granted EVD to nationals of at least 14 countries. H. R. Rep. No. 98–1142, p. 4 (1984).

Under this regime, the grant and termination of humanitarian relief was purely a matter of executive discretion, and judges on the Court of Appeals for the District of Columbia Circuit concluded that the Executive's decision to withhold such relief was an unreviewable exercise of prosecutorial discretion. *Hotel & Restaurant Employees Union, Local 25* v. *Smith*, 846 F. 2d 1499, 1519–1520 (CADC 1988) (opinion of Silberman, J.); see also *id.*, at 1510 (opinion of Mikva, J.) ("[T]he court has no meaningful standard against which to judge the agency's exercise of discretion to deny EVD status in this case"). Judge Silberman, joined by three other judges, observed that review of an EVD decision would raise separation-of-powers concerns because "[c]ontrol of the country's policy toward aliens is 'inherent in the executive power to control the foreign affairs of the nation,'" *id.*, at 1520 (quoting *United States ex rel. Knauff* v. *Shaughnessy*, 338 U. S. 537, 542 (1950)), and "'[m]atters relating "to the conduct of foreign relations . . . are so exclusively entrusted to the political branches of government as to be largely immune from judicial inquiry or interference,"'" *Hotel & Restaurant Employees Union*, 846 F. 3d, at 1520. Judge Silberman therefore concluded that judicial review would be impermissible "in the absence of an extraordinarily precise statutory standard against which to measure the conduct in question." *Ibid.*

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B

After critics objected that the Extended Voluntary Departure program lacked "'proper guidelines or standards,'"[2] Congress created TPS. This new regime provided standards to govern the grant and termination of TPS but maintained core features of the old EVD program. Three aspects of the new regime are noteworthy.

First, as with EVD, the Executive Branch retains discretion over whether to designate a country for TPS. Responsibility for TPS decisions rests with the Secretary of Homeland Security, 6 U. S. C. §§ 552(d), 557, and the statute provides that the Secretary "*may* designate" a country for TPS "after consultation with appropriate agencies of the Government" if certain conditions are met. 8 U. S. C. § 1254a(b)(1) (emphasis added). These are:

1. "[T]here is an ongoing armed conflict within the state and, due to such conflict, requiring the return of aliens who are nationals of that state to that state (or to the part of the state) would pose a serious threat to their personal safety;"
2. "[T]here has been an earthquake, flood, drought, epidemic, or other environmental disaster in the state resulting in a substantial, but temporary, disruption of living conditions," "the foreign state is unable, temporarily, to handle adequately" the return of its nationals, and the state requests TPS designation; or
3. "[T]here exist extraordinary and temporary conditions in the foreign state that prevent aliens who are nationals of the state from returning to the state in safety, unless the [Secretary] finds that permitting the aliens to remain temporarily in the United States is contrary to the national interest." *Ibid.*

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[2] Congressional Research Service, J. Wilson, Temporary Protected Status and Deferred Enforced Departure 4 (2025).

Once a country receives a TPS designation, certain nationals of that country living in the United States without another lawful immigration status qualify for work authorization and immunity from removal. See §§ 1254a(a)(1), (c).

The second notable feature of TPS is that the statute requires the Government to terminate a country's TPS designation if the Secretary determines that the country "no longer continues to meet the conditions for designation." § 1254a(b)(3)(B). The Secretary generally makes such determinations as part of an ongoing review of all TPS designations. The Secretary is instructed to review each TPS designation at least every 18 months. §§ 1254a(b)(2)–(3). During this review, the Secretary must "consul[t] with appropriate agencies of the Government" and "determine whether the conditions for such designation under this subsection continue to be met." § 1254a(b)(3)(A). If the Secretary takes no action, a TPS designation automatically extends for another six months. See §§ 1254a(b)(2)(B), (3)(C). These extensions continue until the Secretary publishes a termination notice. *Ibid.* Terminations take effect at least 60 days after the notice appears in the Federal Register. § 1254a(b)(3)(B).

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Finally, the Secretary's TPS designation decisions are not subject to judicial review. The relevant provision bars "judicial review of any determination of the [Secretary of Homeland Security] with respect to the designation, or termination or extension of a designation, of a foreign state." § 1254a(b)(5)(A).

C

Although designed to afford "temporary" relief, TPS designations in practice have often lasted for decades. For example, the Secretary designated Somalia in 1991, and that designation remains in effect 35 years later. See 56 Fed. Reg. 46805 (1991); *African Communities Together* v. *Noem*, No. 26–cv–11201, 2026 WL 710666 (D Mass., Mar. 13, 2026). Three other countries retain designations that are more than

25 years old. See 64 Fed. Reg. 526 (1999) (Nicaragua); *id.*, at 524 (Honduras); 66 Fed. Reg. 14214 (2001) (El Salvador).[3]

The current administration objects to lengthy TPS designations and adopted a new, restricted approach shortly after the beginning of President Trump's second term in office. In Executive Order 14159, titled "Protecting the American People Against Invasion," the President directed Cabinet officers to "ensur[e] that designations of Temporary Protected Status are consistent with the provisions of" the TPS statute and that such designations "are appropriately limited in scope and made for only so long as may be necessary to fulfill the textual requirements of that statute." 90 Fed. Reg. 8446 (2025). Under this approach, the Secretary of Homeland Security has terminated every TPS designation that has come up for renewal, 13 in all. See *infra*, at 349.

Legal challenges to these decisions began almost immediately. In opposing those challenges, the Government's front line of defense has been the judicial-review bar in § 1254a(b)(5)(A), but the lower courts have consistently rebuffed that argument. The Government once again led with that jurisdictional argument in asking us to stay two District Court orders that postponed the termination of Venezuela's TPS designation, and we granted those requests. *Noem* v. *National TPS Alliance*, 605 U. S. 909 (2025) (*NTPSA I*); *Noem* v. *National TPS Alliance*, 606 U. S. 1062 (2025) (*NTPSA II*). Nevertheless, lower courts, including those in the cases now before us, have continued to block the Secretary's attempted terminations of other TPS designations.

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[3] Not all TPS designations have lasted so long. Presidents Clinton, George W. Bush, and Obama terminated some TPS designations much more promptly. See, *e. g.*, 58 Fed. Reg. 7582 (1993) (Lebanon, terminated two years after initial designation); 62 Fed. Reg. 33442 (1997) (Rwanda, terminated three years after initial designation); 69 Fed. Reg. 40643 (2004) (Montserrat, terminated less than eight years after initial designation); 81 Fed. Reg. 66064 (2016) (Guinea, terminated less than three years after initial designation). None of these terminations were challenged in court.

E.g., 1 App. 33 (Syria); *id.*, at 40 (Syria); 818 F. Supp. 3d 126, 186 (DC 2026) (Haiti); 2 App. 719 (Haiti); *Doe* v. *Noem*, 822 F. Supp. 3d 893, 901 (ND Ill. 2026) (Burma); *African Communities Together* v. *Noem*, 828 F. Supp. 3d 235, 261 (D Mass. 2026) (Ethiopia).

1

The Secretary designated Syria for TPS in 2012 because of "extraordinary and temporary conditions" related to the repressive regime of Bashar al-Assad. 77 Fed. Reg. 19027 (2012). The initial designation notice recounted horrific conditions in that country, including use of "excessive force against civilians, arbitrary executions, killing and persecution of protestors and members of the media, arbitrary detention, disappearances, torture, and ill-treatment." *Ibid.* The notice recounted that Syrian military units and mercenaries had "terrorized the population, targeting and killing small children, women, and other unarmed civilians." *Ibid.* These actions led military defectors and members of the population into armed resistance and, eventually, civil war. *Ibid.* For these reasons, the Secretary concluded that "Syrian nationals cannot return to Syria in safety due to extraordinary and temporary conditions." *Id.*, at 19028. The Secretary designated Syria for TPS for an initial period of 18 months. *Ibid.* In the 14 years since then, Syria has maintained its TPS designation through a series of extensions and re-designations. See 90 Fed. Reg. 45399 (2025).

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In September 2025—several months after we stayed the District Court order in *NTPSA I*, the first case involving Venezuela—the Secretary provided public notice that Syria's TPS designation would terminate in 60 days. 90 Fed. Reg. 45402. She stated that she had "consult[ed] with appropriate U. S. Government agencies" and had "reviewed country conditions in Syria." *Id.*, at 45399. She recognized that between 2011 and 2024 the Syrian civil war had caused more than 500,000 deaths, the displacement of millions, and exten-

sive damage to infrastructure. *Id.*, at 45400. But in 2024, the Assad regime fell, and a transitional government took its place. *Ibid.* The notice recounted that the United States had normalized relations with Syria's new government and had revoked sanctions. *Ibid.*

Even so, the termination notice acknowledged that serious problems remained. It noted that localized violence had replaced "nationwide hostilities" and that "insurgent flare-ups" continued. *Ibid.* The Secretary also recognized that "most Syrians require some form of humanitarian assistance," but she found that "this does not prevent nationals from returning in safety, as evidenced by the U. N. High Commissioner for Refugees' estimate that 'since 2024, over 1.2 million Syrians have returned to Syria.'" *Ibid.* In short, the termination notice described improved conditions in Syria but by no means painted a rosy picture. Based on her review, the Secretary determined that "termination of the Syria Temporary Protected Status designation [was] required." *Ibid.*

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Asserting claims under the Administrative Procedure Act (APA), seven Syrian nationals who benefit from TPS sued in the Southern District of New York to stop the termination of Syria's TPS designation. The District Court concluded that these plaintiffs (respondents in No. 25–1083) were entitled to interim relief under 5 U. S. C. § 705, which authorizes a reviewing court in appropriate circumstances to postpone the effective date of agency action. See 1 App. 6. The court rejected the Government's jurisdictional argument because of the "restrictive manner in which jurisdiction-stripping provisions are construed." *Id.*, at 9. It then held that the plaintiffs were likely to succeed on their APA claims that the termination of Syria's TPS designation was contrary to law and arbitrary and capricious. See § 706.

The court claimed not to "opin[e] on the substance of the Secretary's termination decision or on her authority to make such a decision," but it proceeded to criticize the Secretary for "taking a hatchet to the TPS system." *Id.*, at 15–16.

The court found that the Secretary's decision to terminate Syria's TPS designation constituted one aspect of the current administration's "anti-immigrant agenda." *Id.*, at 25. The court then indefinitely postponed the effective date of the termination of Syria's TPS designation and declined to stay its own order.

The Second Circuit also denied the Government's request for a stay. It concluded that it likely had jurisdiction, that the challengers had at least one strong APA claim (namely, that the Secretary acted contrary to law by failing to engage in adequate consultation with other agencies before terminating TPS), and that the other stay factors were not met. *Id.*, at 38–40.

Following the Second Circuit's ruling, the Government turned to this Court for relief. We granted certiorari before judgment and deferred ruling on the Government's request for a stay. 607 U. S. 1234 (2026).

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2

Haiti received a TPS designation in 2010 after a devastating earthquake killed or injured hundreds of thousands of residents, caused massive property damage, and severely worsened living conditions. 75 Fed. Reg. 3477 (2010). The Government re-designated Haiti for TPS and extended that designation several times. See 90 Fed. Reg. 54734 (2025).

In 2018, the Government attempted to terminate Haiti's TPS designation, but court orders prevented that termination from taking effect. 86 Fed. Reg. 41864 (2021). In 2021, following a change in administration, the Government re-designated Haiti for TPS, citing gang-related violence, human-rights abuses, poverty, inadequate healthcare, and food insecurity. *Id.*, at 41864–41867. Relying on these same grounds, the Government continued to extend Haiti's TPS designation. 90 Fed. Reg. 54734. The net effect was to allow Haitians who benefit from TPS to retain that status for 16 years.

In November 2025, the Secretary provided public notice that Haiti's TPS designation would terminate on February 3, 2026—the last day of the most recent extension. *Id.*, at 54739. Stating that she had "consult[ed] with appropriate U. S. Government agencies," *id.*, at 54735, she explained her assessment of the current situation in Haiti. "Certain conditions," she acknowledged, "remain[ed] concerning," especially gang violence and its "spillover effects." *Ibid.* But she asserted that certain areas "of the country [were] suitable to return to" and that the situation would further improve with the deployment of a multinational gang-suppression force. *Ibid.* Separately, she concluded that the ongoing designation of Haiti contravened the United States' national interests. She noted, among other things, that many Haitians in the United States had entered illegally, that Haitians who came here legally overstayed their visas at an exceptionally high rate, and that the Haitian Government was often unable to provide the information needed to identify its own nationals' criminal records or gang affiliations. *Id.*, at 54736–54737. The notice concluded by noting that the United States' "immigration policy must align with our foreign policy vision of a secure, sovereign, and self-reliant Haiti and not a country that Haitian citizens continue to leave in large numbers to seek opportunities in the United States." *Id.*, at 54738.

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Before the termination took effect, a group of five Haitian nationals with TPS sued in the District Court for the District of Columbia to stop the termination of Haiti's designation. They asserted claims under the APA and charged that the termination of Haiti's designation violated the constitutional right to equal protection because it was motivated by race. The District Court granted interim relief. See *Miot*, 818 F. Supp. 3d, at 186. It found that the TPS judicial-review bar did not apply because plaintiffs challenged "*how* the Secretary went about making her determination," not the ultimate TPS termination decision itself. *Id.*, at 148

(emphasis in original). On the merits, the court ruled that several of the challengers' APA claims were likely to succeed, including the claim that the Secretary had not properly consulted other Government agencies and the claim that she had acted arbitrarily and capriciously by ignoring evidence of Haiti's true country conditions. The court also ruled that the challengers would likely succeed on the merits of their equal protection claim because both President Trump and Secretary Noem made statements that suggested racial animus against "Haitians and other nonwhite foreigners." *Id.*, at 177, 180. The court did not stay its order.

A divided D. C. Circuit panel likewise declined to issue a stay. It noted that many other courts had held that they had jurisdiction to consider similar claims, and it found that the Government had failed to show that it would suffer irreparable harm. According to the majority, the Government's assertion that the District Court had intruded on the Executive Branch's foreign-policy prerogatives was a mere "'generalized assertio[n] of injury'" and insufficient to support a stay. 2 App. 720.

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Judge Walker dissented. In his view, the court lacked jurisdiction, and the Government was irreparably harmed by "'an improper intrusion by a federal court into the workings of a coordinate branch of the Government.'" *Id.*, at 726.

After this decision, the Government sought a stay and a writ of certiorari before judgment. We granted review, consolidated this case with *Doe*, and deferred ruling on the stay application. 607 U. S. 1234 (2026).

II

A

We first consider respondents' non-constitutional claims and conclude that we are barred from reviewing them. A provision of the TPS statute, 8 U. S. C. § 1254a(b)(5)(A), provides: "There is no judicial review of any determination of the [Secretary of Homeland Security] with respect to the

designation, or termination or extension of a designation, of a foreign state under this subsection." This text is clear, and its plain meaning is very broad.

We start with the key term "determination," which may mean several different things. It may be used as a synonym for "decision." See, *e. g.*, 4 Oxford English Dictionary 548 (def. 2.b) (2d ed. 1989) (a "decision arrived at or promulgated"); Webster's Third New International Dictionary 616 (def. 4a) (1986) ("the act of deciding definitely and firmly"). The term may also be used to describe the chain of events leading up to a decision. See, *e. g.*, American Heritage Dictionary 359 (def. 1.a) (1981) (the "act of making or *arriving at* a decision" (emphasis added)); Random House Dictionary of the English Language 541 (def. 1) (2d ed. 1987) (the "act of *coming to* a decision or of fixing or settling a purpose" (emphasis added)).

Not only is it common to use the term "determination" in this broad sense, but other terms in the judicial-review bar—particularly the phrase "with respect to"—support this broad understanding. That phrase "generally has a broadening effect, ensuring that the scope of a provision covers not only its subject but also matters relating to that subject." *Patel* v. *Garland*, 596 U. S. 328, 339 (2022) (internal quotation marks omitted).

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Under either of these definitions, § 1254a(b)(5)(A) bars respondents' non-constitutional claims. Each claim concerns a discrete decision made by the Secretary—for example, her decision to consult the State Department in a particular manner and her decision that country conditions in Syria and Haiti justified termination of their TPS designations. And all those steps were part of the process that led to her final decision to terminate these countries' TPS designations. Indeed, the same result would follow if "determination" referred only to that final decision. In that event, all the preceding decisions would be "with respect to" that decision. So, under any dictionary definition of "determina-

tion," the judicial-review bar applies to respondents' nonconstitutional claims.

We recognize that "when a statutory provision 'is reasonably susceptible to divergent interpretation, we adopt the reading that accords with'" the traditional and basic principle that "'executive determinations generally are subject to judicial review.'" *Guerrero-Lasprilla* v. *Barr*, 589 U. S. 221, 229 (2020). But here, the text of the TPS judicial-review bar very clearly overcomes the general presumption in favor of judicial review.

B

Respondents and the courts below offer several theories to overcome the plain meaning of the judicial-review bar, but none is sound.

1

The most prominent theory is that § 1254a(b)(5)(A) applies only to substantive claims, not those based on alleged procedural errors. 1 App. 10–11; 818 F. Supp. 3d, at 148; Brief for Respondents in No. 25–1083, pp. 30–31; Brief for Respondents in No. 25–1084, pp. 15–16. This argument finds no support in the language of § 1254a(b)(5)(A) because a "determination" may concern procedural or substantive questions. Take *Doe* respondents' argument that the Secretary inadequately consulted the State Department about conditions in Syria. In proceeding as she did, the Secretary, either personally or through her subordinates, made a series of procedural determinations: to communicate with the State Department by email, to send a terse and unspecific email, and to proceed to terminate Syria's TPS designation after receiving a laconic answer.

In attempting to limit § 1254a(b)(5)(A) to substantive determinations, respondents and lower courts have relied not on the statutory text but on several of our decisions, chiefly *McNary* v. *Haitian Refugee Center, Inc.*, 498 U. S. 479 (1991), and *Bowen* v. *Michigan Academy of Family Physi-*

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cians, 476 U. S. 667 (1986). But they read far too much into those decisions.

McNary concerned the Special Agricultural Farmworker amnesty program. A provision of the governing statute barred "review of a determination respecting *an application* for adjustment of status under" that program except in removal proceedings. § 1160(e)(1) (1988 ed.) (emphasis added). Because this provision referred to "a single act," *i. e.*, a ruling on an individual application, the Court held that alien farmworkers' broad claims about the procedures used in implementing the program could proceed. *McNary*, 498 U. S., at 492. Thus, the decision turned on the specific wording of the provision at issue. It did not adopt the broad principle that the term "determination" applies only to substantive matters.

Nor does *Bowen* support respondents' position. There, the Court held that two statutory provisions did not bar judicial review of a regulation that provided disparate Medicare Part B payments to allopathic and other physicians. The first provision did not bar review at all. Instead, it authorized judicial review of benefits awarded in hearings conducted by private insurance carriers. 42 U. S. C. § 1395ff(b) (1982 ed.). The Government asked the Court to infer that this grant of a particular type of review implicitly barred review of the challenged regulation. *Bowen*, 476 U. S., at 673. But based on the language of this provision and its legislative history, the Court rejected that request. *Id.*, at 674–678. The *Bowen* Court's refusal to find an implicit preclusion of review in the specific language and legislative history of a differently worded provision in a particular statutory scheme hardly means that the term "determination" in 8 U. S. C. § 1254a(b)(5)(A) is limited in the way respondents contend and lower courts have ruled.

The second statutory provision at issue in *Bowen* is no more helpful to respondents than the first provision. This provision in the Medicare Act incorporated a list of sections

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of the Social Security Act, and one of those sections prohibited certain actions against the Government or its officers. See 42 U. S. C. § 1395ii (1982 ed., Supp. II) (referencing 42 U. S. C. § 405(h) (1982 ed., Supp. II)). The Court held that this provision did not bar review of the challenged Medicare regulation because it was "incorporated *mutatis mutandis*," *i. e.*, with necessary and appropriate modifications, and because legislative history showed that the Medicare Act provision was not meant to bar review of important questions like the one at issue. *Bowen*, 476 U. S., at 680.

By contrast, the TPS judicial-review bar expressly restricts review; it is not a string cite that incorporates another provision to a limited degree. And even if we were disposed to consult legislative history to determine the meaning of 8 U. S. C. § 1254a(b)(5)(A), the proponents of the substance-only interpretation cite no legislative history that supports their position.

2

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Doe respondents, while agreeing that § 1254a(b)(5)(A) applies to only substantive determinations, advance another argument that would reduce the reach of that provision even further. In their view, the statutory term "determination" in the judicial-review bar applies only to determinations about conditions in the country designated for TPS.

This argument, which gives the commonly used term "determination" a special meaning, runs headlong into our statutory-interpretation precedents. We are wary of giving common terms technical meanings. See *Yellen* v. *Confederated Tribes of Chehalis Reservation*, 594 U. S. 338, 353 (2021). Statutory interpretation proceeds on the assumption that those who draft and enact a provision generally intend its terms to mean what they mean in ordinary usage. Without that assumption, the entire endeavor would break down. Ordinary people could not understand what the law requires of them, and every word in a statute could be an unfathomable puzzle. Of course, a statute may provide ex-

pressly, or may signal in some other clear way, that it employs a common term in a way that departs from its ordinary meaning, but without strong proof of such a departure, commonly used terms should be given their common meaning. *Feliciano* v. *Department of Transp.*, 605 U. S. 38, 45 (2025).

Here, "determination" is a commonly used term, and therefore *Doe* respondents bear the burden of showing that, as used in § 1254a(b)(5)(A), it carries a technical, TPS-specific meaning. But their effort to show that "statutory context" dictates adoption of their interpretation, *Yellen*, 594 U. S., at 351, falls short because the TPS statute uses "determination" in multiple ways that that have nothing to do with the assessment of country conditions. For example, the very first use of "determination" in the TPS statute refers to a "determination with respect to the alien's eligibility for . . . benefits." § 1254a(a)(4)(B). In another provision, the statute refers to the "determination of an alien's admissibility." § 1254a(c)(2)(A). Still another provision describes the effect of TPS on discretionary immigration benefits if the Secretary "determines that extreme hardship exists." § 1254a(e). These uses of "determination" or "determines" are plainly not references to country conditions.

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Doe respondents counter that we need not look to how the TPS statute as a whole uses the term "determination" but can instead limit our examination to the use of the term in subsection (b), which contains the judicial-review bar. And there, they point out, the term refers only to the Secretary's evaluation of country conditions. Brief for Respondents in No. 25–1083, pp. 18–22.

This argument rests on a cramped view of statutory context. When we consider statutory context, we evaluate the provision at issue "with a view to [its] place in the *overall* statutory scheme," not just in a single subsection. *Utility Air Regulatory Group* v. *EPA*, 573 U. S. 302, 320 (2014) (internal quotation marks omitted; emphasis added). While the use of a term in nearby or closely related provisions may

be entitled to more weight, there is no justification for limiting our examination as closely as *Doe* respondents urge. Once we expand our aperture, we see that the TPS statute uses "determination" in its ordinary sense, not to denote an assessment of country conditions.

3

Taking a different tack, respondents argue that only the Secretary's ultimate "determination"—not any subsidiary decision, such as whether to consult other agencies—is unreviewable. The dissent makes a similar argument. *Post*, at 360–362 (opinion of KAGAN, J.). For reasons already explained, this argument is inconsistent with the plain meaning of the statutory text. And that is true whether the term "determination" is understood to mean a discrete decision or a process leading up to a final decision.

This argument also contradicts general administrative-law principles. In APA cases, an agency's subsidiary decisions merge into the final agency action, which is then subject to review. See *Army Corps of Engineers* v. *Hawkes Co.*, 578 U. S. 590, 597–598 (2016). If the final agency action is unreviewable, then so too are subsidiary determinations. See *Amgen, Inc.* v. *Smith*, 357 F. 3d 103, 113 (CADC 2004); *DCH Regional Medical Center* v. *Azar*, 925 F. 3d 503, 506 (CADC 2019). This important principle ensures that challengers cannot avoid a judicial-review bar by creative pleading or clever lawyering.

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Moving beyond the text and precedent, respondents contend that our interpretation of the judicial-review bar could protect many shocking abuses of TPS. For example, a rogue Secretary in one fell swoop could issue a 50-year TPS designation, contrary to the 18-month statutory cap. Or a Secretary could terminate a TPS designation based on a coinflip. The Government responds to each of respondents' far-fetched hypotheticals and concludes that some but not all could in fact be redressed by the courts. See Reply Brief

9–10. But whether or not that assessment is correct, the fact remains that if a Secretary engaged in the sort of conduct that respondents imagine, Congress would have ample means to stop that abuse, including, for example, through the annual appropriations process. "Sometimes Congress decides that the political process is the proper forum for remedying improper conduct." *National TPS Alliance* v. *Noem*, 169 F. 4th 796, 807 (CA9 2026) (Bumatay, J., dissenting from denial of reh'g en banc).

* * *

In sum, we hold that the TPS statute's judicial-review bar applies to all non-constitutional claims.

III

We continue with *Miot* respondents' equal protection claim.[4]

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A

We have held that "where Congress intends to preclude judicial review of constitutional claims its intent to do so must be clear." *Webster* v. *Doe*, 486 U. S. 592, 603 (1988). In this case, we need not resolve whether the TPS statute meets that clear-statement rule because we conclude that *Miot* respondents' constitutional claim is unlikely to succeed on the merits.

Before proceeding further, we briefly explain why we may address the substance of *Miot* respondents' equal protection claim without deciding whether the District Court had jurisdiction to entertain it. It is a cardinal rule that a federal court may not consider the merits of a claim without first making a firm determination that it has jurisdiction. *Steel Co.* v. *Citizens for Better Environment*, 523 U. S. 83, 93–94 (1998).

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[4] *Doe* respondents brought a similar claim, but the District Court held that it was not likely to succeed. So that claim is not before us.

When interim relief is sought, however, a court does not make a final decision on any matter necessary to the ultimate judgment. Instead, the court makes only a predictive—not a final—decision about the outcome of the case. And the likelihood that the court has jurisdiction over a claim and the likelihood that the claim is meritorious both bear on the claim's ultimate prospects. See *Arizona* v. *Biden*, 31 F. 4th 469, 479 (CA6 2022) (Sutton, C. J.). So in evaluating the likelihood-of-success question for the purpose of ruling on a request for interim relief, courts may consider both the likelihood that they have jurisdiction and the likelihood that the claim will succeed on the merits. If they conclude that a claim fails on either ground, they must deny interim relief. Similarly, a court with appellate jurisdiction may reverse on either jurisdictional or merits grounds a lower court order that granted interim relief. But courts need not always start with the jurisdictional ground if the claim for interim relief would also fail on the merits.

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Here, we review the District Court's award of interim relief. Thus, in evaluating *Miot* respondents' likelihood of success on their equal protection claim, we may reverse the District Court's grant of interim relief on either jurisdictional or merits grounds.

B

We turn now to the merits of *Miot* respondents' equal protection claim. The parties dispute the proper standard for assessing this claim. The Government contends that we should apply the deferential test we used in *Trump* v. *Hawaii*, 585 U. S. 667 (2018), and it claims that many of the factors that informed the Court's identification of the proper standard of review in that case are also present here. Brief for Petitioners 46–47. These factors include the Executive's broad authority over the admission and exclusion of foreign nationals and the connection between immigration policy and foreign relations. *Ibid.* *Miot* respondents, on the other hand, urge us to apply heightened scrutiny under *Arlington*

Heights v. *Metropolitan Housing Development Corp.*, 429 U. S. 252 (1977). In their view, the *Hawaii* standard applies only to the exclusion of aliens seeking to enter the country, not to those who are already here. Brief for Respondents in No. 25–1084, p. 42.

We need not resolve this debate. We will assume for the sake of argument that the *Arlington Heights* standard applies and that we must therefore determine whether a "discriminatory purpose [was] a motivating factor in the decision" to terminate Haiti's TPS designation. 429 U. S., at 265–266. But because application of that standard calls for consideration of the context in which a challenged statement was made, *id.*, at 267–268, the immigration context is an important factor.

In support of their claim that the termination of Haiti's TPS designation was based on race, respondents cite statements made by the President and former Secretary Noem.

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The President's comments fall into four main categories. First, many express strong objections to the immigration that this country has experienced in recent decades and to many of the immigrants who have come here, particularly those who have come to or stayed in the United States illegally. These statements associate these immigrants with crime and other social ills. Second, some statements express great displeasure with TPS. They note, among other things, that TPS designations have often been far from temporary and that aliens who are allowed to stay in the United States under the program are not vetted like other aliens who seek admission. Third, some statements broadly denigrate the countries for which TPS designations have been granted—including Haiti—portraying them as hellish places in which to live. And fourth, some statements malign Haitians who have come to the United States.

Miot respondents also cite statements by former Secretary Noem that fall into three categories. Some expressed antipathy toward travelers from countries covered by a re-

newed travel ban, much like the one that was before us in *Hawaii*, 585 U. S, at 679–680. Others were derogatory comments about immigration and its effects. And still some others promised changes and criticized past implementation of TPS.

None of the cited statements by either the President or the Secretary was overtly racial, and in substance all expressed policy views that could rest on race-neutral justifications. For example, one may oppose TPS and favor tighter restrictions on immigration for economic or other reasons that have nothing to do with race. And a person without racial bias can provide a harshly unfavorable description of living conditions in some of the countries with TPS designations. The criteria for TPS designations guarantee that many, if not most, designated countries have such characteristics.

Haiti is no exception. It is a very poor country, and living conditions there are unquestionably difficult. Many Americans of all races would surely find those conditions intolerable. But poverty and deprivation are no reflection on character, and there is no justification for denigrating the character of Haitians who suffer from and bear no responsibility for their country's ills.

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Due in large part to the difficult conditions at home, many Haitians have come to this country throughout our history. And beginning with the more than 500 Haitians who fought to support American independence at the Battle of Savannah in 1779,[5] Haitians have made many positive contributions to the United States from the very beginning, and they continue to do so today.

In offering the cited statements as proof that the termination of Haiti's TPS termination was motivated by race, *Miot* respondents seek to capitalize on the statements' heated language. Political discourse by prominent public figures is in-

[5] See G. Clark, The Role of the Haitian Volunteers at Savannah in 1779: An Attempt at an Objective View, 41 Phylon 356 (1980).

creasingly couched in terms that would have scandalized the public just a short time ago, and the statements cited by *Miot* respondents—especially those concerning Haiti and Haitian immigrants to this country—exemplify this development.

But whatever one may think of the cited statements, they are insufficient to show that the termination of Haiti's TPS designation was based on the race of the Haitian people. Ironically, both *Doe* and *Miot* respondents identify a strong, race-neutral explanation of these officials' statements: the present administration's general stance on immigration and its obvious antipathy toward past administrations' TPS policies. Respondents argue that the Secretary made a "preordained decision" to end TPS for all countries, Brief for Respondents in No. 25–1083, p. 49, and they stress that she terminated the TPS designations for every country that came up for review, 13 in all. *Id.*, at 9–10; Brief for Respondents in No. 25–1084, p. 10. Included are nations in East Asia (Nepal and Burma), Central Asia (Afghanistan), the Middle East (Syria and Yemen), Africa (Somalia, Ethiopia, South Sudan, and Cameroon), Central America (Nicaragua and Honduras), South America (Venezuela), and the Caribbean (Haiti).

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Most would regard this as a racially diverse group of countries, but *Miot* respondents see them all as "non-white" nations. *Ibid.* They claim that TPS has not been terminated for any predominantly white nation, and they therefore infer that the reason for the termination of the TPS designation for Haiti was having a predominantly non-white population.

Respondents' definition of a predominantly non-white nation is broad, apparently encompassing major European countries. See Tr. of Oral Arg. 106–108. It may be that only the termination of a TPS designation for a Nordic or Germanic country would be sufficient in their judgment to show that the Secretary's unbroken record of TPS terminations was race-neutral. However, no such test case has

come up during the present administration. Only one European nation—Ukraine—had a TPS designation when the President began his second term, and that country's TPS designation has not yet come up for review. See 90 Fed. Reg. 5936 (2025) (extending Ukraine TPS designation through October 19, 2026). The only other European states ever designated for TPS were the war-torn provinces of Kosovo and Bosnia-Herzegovina.[6] The great majority of countries granted TPS have ranked among the poorest nations of the world, and no European nation falls into that category.

Viewing all the relevant evidence, we conclude that *Miot* respondents are unlikely to prove that race was a motivating factor in the decision to terminate Haiti's TPS designation. It follows that they are not entitled to interim relief on their equal protection claim.[7]

* * *

The judgments of the United States District Courts for the Southern District of New York and the District of Columbia are reversed. The cases are remanded for further proceedings consistent with this opinion.

It is so ordered.

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JUSTICE THOMAS, concurring.

I join the opinion of the Court in full. I write separately to address two more fundamental problems with the *Miot* respondents' suit. First, their equal protection claim, while meritless under the Court's precedents, was also beyond the

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[6] 63 Fed. Reg. 31527 (1998) (designating Kosovo for TPS); 65 Fed. Reg. 33356 (2000) (terminating Kosovo's TPS designation); 57 Fed. Reg. 35604 (1992) (designating Bosnia-Herzegovina for TPS); 65 Fed. Reg. 52789–52790 (2000) (terminating Bosnia-Herzegovina's TPS designation).

[7] On June 16, *Miot* respondents filed a motion to dismiss the writ of certiorari as improvidently granted. They claim that newly discovered evidence provides further support for their equal protection claim. This evidence is cumulative of other evidence in the record, and the motion is denied.